

Tentative Rulings for Department 503

Begin at the next page

(46)

Tentative Ruling

Re: **Alba Hudson v. Keith Hudson**
Superior Court Case No. 23CECG04453

Hearing Date: August 6, 2026 (Dept. 503)

Motion: by Defendant Keith Monroe Hudson for Terminating Sanctions

Tentative Ruling:

To grant Defendant Keith Monroe Hudson's motion for terminating sanctions, as to the complaint filed by Plaintiff Alba Rosa Hudson on October 25, 2023. (Code Civ. Proc., § 2023.030, subd. (d).) The trial date set for January 25, 2027 is vacated, as are the dates for the Trial Readiness Conference and Mandatory Settlement Conference.

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 503.**

Explanation:

Defendant Keith Monroe Hudson ("Defendant") moves for terminating sanctions as a result of Plaintiff Alba Rosa Hudson's ("Plaintiff") violation of the discovery order issued on December 2, 2025. Defendant submits that Plaintiff willfully failed to pay the imposed monetary sanctions, and failed to provide the ordered responses to discovery.

Code of Civil Procedure section 2023.010, subdivision (g) makes "[d]isobeying a court order to provide discovery" a "misuse of the discovery process," but sanctions are only authorized to the extent permitted by each discovery procedure. Sanctions for failure to comply with a court order are allowed only where the failure was willful. (*Biles v. Exxon Mobil Corp.* (2004) 124 Cal.App.4th 1315, 1327.) If there has been a willful failure to comply with a discovery order, the court may strike out the offending party's pleadings or parts thereof, stay further proceedings by that party until the order is obeyed, dismiss that party's action, or render default judgment against that party. (Code Civ. Proc. § 2023.030, subd. (d).)

Plaintiff has failed to pay court-ordered monetary sanctions. (Armas Decl., ¶ 11.) Generally, no terminating sanctions will be ordered for failure to pay monetary sanctions. Sanctions should not constitute a "windfall" to the requesting party, giving the moving party more than would have been obtained had the discovery been answered. (*Caryl Richards, Inc. v. Superior Court In and For Los Angeles County* (1961) Cal.App.2d 300, 305.) Terminating sanctions for a party's nonpayment of the monetary sanctions would constitute a windfall to the moving party, which is not the goal of discovery sanctions. (*Caryl Richards, Inc. v. Superior Court In and For Los Angeles County*, *supra*, 188 Cal.App.2d at p. 302; *Rutledge v. Hewlett-Packard Company* (2015) 238 Cal.App.4th 1164, 1194.) Orders for monetary sanctions are enforceable as money judgments.

If a party fails to obey an order compelling answers or response, “the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction[.]” (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) “The court may impose a terminating sanction by [...] An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process[,] ... [or] An order dismissing the action, or any part of the action, of that party.” (*Id.*, § 2023.030, subd. (d).)

On December 2, 2025, the court ordered Plaintiff to serve verified, objection-free responses to Defendant's propounded Special Interrogatories, Set Two, and Request for Production of Documents, Set Two. (Armas Decl., ¶ 8.) To date, Plaintiff has failed to provide any responses to the propounded discovery. (*Id.*, ¶ 11.) Defendant submits that Plaintiff's failure to engage in the discovery process has been willful, as ample time has passed for Plaintiff to comply and she has not done so, nor has she participated in Defendant's attempts to meet and confer regarding the issue. (*Id.*, ¶¶ 12, 14.) Additionally, plaintiff has failed to oppose this motion.

Eight months have now passed since the court's order, and responses have not been served. It appears that Plaintiff is willfully refusing to comply with the court's order compelling her to answer the discovery requests. It does not appear likely that any lesser sanctions would be effective to obtain compliance, as Plaintiff is failing to demonstrate an interest in responding to discovery or otherwise participating in the action. Accordingly, the court intends to grant the motion for terminating sanctions.¹

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/4/2026.
(Judge's initials) (Date)

¹ The Proposed Order includes a section for ordering Plaintiff to pay additional monetary sanctions. However, Defendant makes no formal request for additional monetary sanctions in either the Notice or the Motion. Counsel briefly provides his billable hours and hourly rate in his Declaration. As no request for monetary sanctions was made, nor noticed to the opposing party, the court will not be imposing additional monetary sanctions.